1. It provides for greater stability in the body politic by checking the propensity of legislators to change parties.

2. It facilitates democratic realignment of parties in the legislature by way of merger of parties.

3. It reduces corruption at the political level as well as non-developmental expenditure incurred on irregular elections.

4. It gives, for the first time, a clear-cut constitutional recognition to the existence of political parties.

 **Criticism**

Though the anti-defection law been hailed as a bold step towards cleansing our political life and started as new epoch in the political life of the country, it has revealed may lacunae in its operation and failed to prevent defections in toto. It came to be criticised on the following grounds:

1. It does not make a differentiation between dissent and defection. It curbs the legislator's right to dissent and freedom of conscience. Thus, 'it clearly puts party bossism on a pedestal and sanctions tyranny of the party in the name of the party discipline'[4].

2. Its distinction between individual defection and group defection is irrational. In other words, 'it banned only retail defections and legalised wholesale defections'[5].

3. It does not provide for the expulsion of a legislator from his/her party for his/her activities outside the legislature.

4. Its discrimination between an independent member and a nominated member is illogical. If the former joins a party, he/she is disqualified while the latter is allowed to do the same.

5. Its vesting of decision-making authority in the presiding officer is criticised on two grounds. Firstly, he/she may not exercise this authority in an impartial and objective manner due to political exigencies. Secondly, he/she lacks the legal knowledge and experience to adjudicate upon the cases. In fact, two Speakers of the Lok Sabha (Rabi Ray—1991 and Shivraj Patil—1993) have themselves expressed doubts on their suitability to adjudicate upon the cases related to defections[6].

91ST AMENDMENT ACT (2003)

 **Reasons**

While introducing this amendment bill in the Parliament, the Government of India gave the following reasons for making this amendment to the Constitution of India:

1. Demands have been made from time to time in certain quarters for strengthening and amending the Anti-defection Law as contained in the Tenth Schedule, on the ground that these provisions have not been able to achieve the desired goal of checking defections. The Tenth Schedule has also been criticised on the ground that it allows bulk defections while declaring individual defections as illegal. The provision for exemption from disqualification in case of splits as